

Thomas Massie

(Original Signature of Member)

119TH CONGRESS
2D SESSION

H. R. _____

To amend the Epstein Files Transparency Act with respect to enforcement by an attorney general of a State, and for other purposes.

IN THE HOUSE OF REPRESENTATIVES

Mr. MASSIE introduced the following bill; which was referred to the Committee on

A BILL

To amend the Epstein Files Transparency Act with respect to enforcement by an attorney general of a State, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “Epstein Files Transparency Act II”.

SEC. 2. ENFORCEMENT THE EPSTEIN FILES TRANSPARENCY ACT.

(a) ENFORCEMENT TO THE EPSTEIN FILES TRANSPARENCY ACT.— The Epstein Files Transparency Act (Public Law 119–38; 139 Stat. 656) is amended by adding at the end the following:

“SEC. 4. ENFORCEMENT BY ATTORNEY GENERAL OF A STATE AND BY VICTIMS.

“(a) ACTION AUTHORIZED.—

“(1) IN GENERAL.— The attorney general of a State, a district attorney, or other authorized State officer may bring an action on behalf of such State or the residents thereof, and a victim may bring action on behalf of such victim, against the Attorney General of the United States alleging an unlawful withholding, redaction, delay, removal, concealment, failure to publish, failure to produce, or failure to justify a withholding or redaction of a record, document, communication, or investigative material described in section 2(a), in the United States District Court for the District of Columbia, in any United States district court located in the State on behalf of which the action is brought by an attorney general of a State, district attorney, or other authorized state officer, or, in the case of an action brought by a victim, in any district court located in the State in which the victim resides, to obtain declaratory relief, injunctive relief, monetary relief, costs, reasonable attorney’s fees, and any other appropriate equitable relief.

“(2) CONSIDERATION.— The court shall advance on the docket and expedite the disposition of a civil action filed under this subsection to the greatest extent practicable.

“(3) HARM.— For purposes of this subsection, a State, a resident of a State, or a State or local law enforcement agency shall be considered to have been harmed if the State, the residents of a State, or a State or local law enforcement agency have experienced harm, including investigative harm, harassment, inability to corroborate reports to law enforcement, inability to obtain a victim statement, informational injury, financial harm in excess of \$100, or any other harm as a result of the noncompliance of the Attorney General of the United States with this Act.

“(4) EFFECT ON TOUHY REGULATIONS.— The requirements of 28 C.F.R. §§ 16.21–16.29 shall not apply to any request for, or production of, records pursuant to this Act. An attorney general of a State, district attorney, or other authorized State officer shall not be required to comply with any provision of such regulations as a condition of obtaining, retaining, using, or disclosing records produced under this Act, and no federal agency may invoke such regulations as grounds to withhold, redact, delay, or condition the production of any record required to be disclosed under this Act. The statutory rights and enforcement mechanisms established by this Act shall constitute the exclusive procedural framework governing State law enforcement access to records covered by this Act.

“(5) NO PRECLUSION OF ALTERNATIVE CAUSES OF ACTION.— Nothing in this Act shall be construed to limit, displace, or preclude any other cause of action, claim, or remedy available to an attorney general of a State, district attorney, or other authorized State officer arising from the USDOJ's withholding, redaction, delay, removal, concealment, failure to publish, failure to produce, or failure to justify a withholding or redaction of any record, document, communication, or investigative material described in section 2(a), and the enforcement avenues provided under this Act shall be deemed cumulative of, and in addition to, any such cause of action, claim, or remedy otherwise available at law or in equity.

“(6) APPLICABILITY TO EXISTING INVESTIGATIONS.— The provisions of this Act shall apply to all investigations currently pending before an attorney general of a State, district attorney, or other authorized State officer at the time of enactment, without regard to whether such investigation was initiated prior to the date of enactment. No provision of this Act shall be construed to limit its application solely to investigations commenced after the date of enactment, and any attorney general of a State, district attorney, or other authorized State officer with an active investigation into matters described in section 2(a) shall be entitled to the full benefit of the rights, procedures, and enforcement mechanisms established herein as of the date of enactment.

“(b) VICTIM ACCESS TO UNREDACTED RECORDS.—

“(1) RIGHT OF ACCESS.— Upon request by a victim, the Attorney General of the United States shall provide the victim with the full, unredacted records, documents, communications, or investigative materials described in section 2(a), including FD–302 files, that identify, describe, reference, quote, summarize, document, or otherwise relate to such victim, the parents, siblings, or legal guardians of such victim, or the harm suffered by the victim.

“(2) PROTECTIONS OF OTHER VICTIMS.—

“(A) IN GENERAL.—In complying with a request of a victim under paragraph (1), the Attorney General of the United States may redact segregable portions of the records described in paragraph (1) that contain personally identifiable information of any other victim or the personal and medical files and similar files of any other victim the disclosure of which would constitute a clearly unwarranted invasion of personal privacy.

“(B) CLARIFICATION.— Nothing in paragraph (1) shall be construed to entitle a requesting victim to obtain any record, or segregable portion of a record, that relates to another victim. A requesting victim shall be entitled only to records, or portions of records, that identify, describe, reference, quote, summarize, document, or otherwise relate to the requesting victim.

“(3) ACTION AUTHORIZED.—

“(A) IN GENERAL.— A victim alleging an unlawful withholding, redaction, delay, removal, concealment, failure to produce, failure to respond, or failure to justify a withholding or redaction of a record required to be provided under this subsection shall have standing to bring an action against the Attorney General of the United States in the United States District Court for the District of Columbia or in any United States district court located in the State in which the victim resides to obtain declaratory relief, injunctive relief, monetary relief, costs, reasonable attorney’s fees, and any other appropriate equitable relief.

“(B) CONSIDERATION.— The court shall advance on the docket and expedite the disposition of a civil action filed under

this paragraph to the greatest extent practicable.

“(c) PRODUCTION OF RECORDS REDACTED FROM PUBLIC VIEW.—

“(1) PRODUCTION REQUIRED.—For the purposes of any investigation or judicial proceeding conducted or brought by the attorney general of a State, a district attorney, or other authorized State officer that requests access to information permitted to be withheld or redacted under section 2(c)(1), the Attorney General of the United States shall make available for full, unredacted access to, and copies of, any such record, document, communication, or investigative material described in section 2(a).

“(2) POSSESSION AND USE.—An attorney general of a State, district attorney, or other authorized State officer receiving records under paragraph (1) may possess, review, copy, retain, use, and disclose such records as necessary for any investigation, enforcement action, prosecution, civil action, or other judicial proceeding, subject to any protective order entered by a court to protect the personally identifiable information of victims.

“(3) COURT FILINGS.—Records produced under this subsection may be filed, submitted, quoted, described, or otherwise used in any Federal or State court proceeding, except that any portion of the record containing information protected from public disclosure under section 2(c)(1) shall be filed under seal or otherwise protected pursuant to an appropriate protective order unless the court determines that public disclosure—

“(A) is authorized by law; and

“(B) does not reveal to the public personally identifiable information of any victim or the personal and medical files and similar files of any victim the disclosure of which would constitute a clearly unwarranted invasion of personal privacy.

“(4) NO LIMITATION TO IN CAMERA REVIEW.—Production under this subsection shall not be limited to in camera review, and no protective order may prohibit the requesting attorney general of a State, district attorney, or other authorized State officer from possessing or using the records as necessary for an investigation or judicial proceeding consistent with this subsection.

“(d) REVIEW AND USE OF CLASSIFIED MATERIALS.—

“(1) IN GENERAL.— For purposes of any investigation or judicial proceeding conducted or brought by the attorney general of a State, district attorney, or other authorized State officer requesting access to classified records described in section 2(a), the Attorney General of the United States shall make available to such attorney general of a State, district attorney, or other authorized State officer for full, unredacted review any such classified record.

“(2) ACCESS.— Access under paragraph (1) shall be provided in a secure facility and under procedures approved by the court to protect information that is properly classified pursuant to criteria established by executive order, including review by the court, the requesting attorney general of a State, district attorney, or other authorized State officer, and such counsel, as the court determines are necessary and appropriate.

“(3) PROTECTIVE PROCEDURES.— The Attorney General of the United States may not refuse, delay, or object to access under paragraph (1) on the grounds that the material is classified, but may request protective procedures governing the storage, handling, review, use, and filing of classified portions of the material.

“(4) USE OF CLASSIFIED PORTIONS.— Classified portions of records described in section 2(a) may be submitted, described, quoted, or otherwise used in any Federal or State court proceeding under seal, in camera, and ex parte if necessary.

“(5) RULE OF CONSTRUCTION.— Nothing in this subsection shall be construed to authorize the public release of classified information except in accordance with section 2(c)(3).

“(e) CONGRESSIONAL ACCESS.—

“(1) COMPLIANCE.—

“(A) ACCESS.—Notwithstanding section 2(c) or any other provision of law, upon the written request of any Member of Congress, the Attorney General of the United States shall, not later than 7 calendar days after receiving the request, provide such

Member with full, unredacted access to, any record described in section 2(a).

“(B) RELEASE.— Upon receipt of written notice from any Member of Congress alleging that the Attorney General of the United States has unlawfully withheld or redacted material under this Act or otherwise violated any requirement of this Act, the Attorney General shall, not later than 30 calendar days after receiving such notice, remedy the alleged violation or provide the Member with a written justification demonstrating that the actions identified in the notice were in compliance with this Act.

“(2) ACTION AUTHORIZED.—A Member of Congress who has submitted a request under paragraph (1)(A) or written notice under paragraph (1)(B) and, after expiration of the applicable period under paragraph (1), alleges that the Attorney General of the United States failed to comply with such request or notice, or any other provision of this Act, including through an unlawful withholding, redaction, delay, removal, concealment, failure to produce, failure to respond, failure to provide the written justification required under paragraph (1)(B), the provision of a written justification is materially false, misleading, or otherwise fails to demonstrate compliance with this Act, shall have a cause of action against the Attorney General of the United States in the United States District Court for the District of Columbia or in any United States district court for a judicial district that includes any portion of the State, congressional district, territory, or district represented by the Member for any violation of any provision of this Act.

“(3) RELIEF.—In an action brought under paragraph (2), the court may—

“(A) declare that the Attorney General of the United States has failed to comply with this Act;

“(B) enjoin any continued withholding, redaction, delay, removal, concealment, or other noncompliance;

“(C) declare that a written justification provided under paragraph (1)(B) is materially false, misleading, or otherwise fails to demonstrate compliance with this Act;

“(D) compel compliance with this Act through a writ of mandamus or any other appropriate equitable remedy; and

“(E) award costs and reasonable attorney’s fees.

“(f) PENALTIES.—

“(1) IN GENERAL.—Any officer or employee of the Department of Justice, the Federal Bureau of Investigation, or United States Attorneys’ offices, including the Attorney General of the United States and the Director of the Federal Bureau of Investigation, who conceals, removes, destroys, mutilates, falsifies, withholds, misrepresents, or makes a materially false statement or certification concerning any record, document, communication, investigative material justification, report, summary, or publication required under this Act shall be fined or imprisoned under sections 1001, 1505, 1519, and 2071 of title 18, United States Code, as applicable, provided that the relevant mens rea requirements under those statutes shall be required to be met.

“(2) OBSTRUCTION OF PROCEEDINGS BEFORE DEPARTMENTS, AGENCIES, AND COMMITTEES.— For purposes of section 1505 of title 18, United States Code, any congressional review, hearing, inquiry, report, certification, or enforcement proceeding relating to compliance with this Act shall be deemed a proceeding before a department, agency, or committee of Congress.

“(3) DESTRUCTION, ALTERATION, OR FALSIFICATION OF RECORDS .— For purposes of section 1519 of title 18, United States Code, compliance with this Act shall be deemed a matter within the jurisdiction of a department or agency of the United States.

“(g) DEFINITIONS.—In this section:

“(1) VICTIM.—

“(A) IN GENERAL.— The term ‘victim’ means any

individual who was directly harmed by any sexual abuse, trafficking, forced labor, commercial sex act, abuse or exploitation of a minor, or related criminal conduct involving Jeffrey Epstein, Ghislaine Maxwell, or the criminal network led by Epstein and Maxwell, and who—

“(i) has been identified, designated, recognized, or otherwise treated, including by redacting such individual’s name or personally identifiable information in a record described in section 2, as a victim of Jeffrey Epstein, Ghislaine Maxwell, or the criminal network led by Epstein and Maxwell by the Department of Justice, the Federal Bureau of Investigation, a United States Attorney’s office, or a Federal court;

“(ii) is associated with an FD–302 file or other investigative record in the possession of the Federal Bureau of Investigation or the Department of Justice relating to Jeffrey Epstein, Ghislaine Maxwell, or the criminal network led by Epstein and Maxwell; or

“(iii) submits a sworn declaration or affidavit making an allegation of such harm involving Jeffrey Epstein, Ghislaine Maxwell, or the criminal network led by Epstein and Maxwell.

“(B) EXCLUSION.— The term ‘victim’ shall not include any individual whose claim of being a victim arises from such individual’s own participation in, solicitation of, facilitation of, concealment of, or benefit from the criminal conduct involving Jeffrey Epstein, Ghislaine Maxwell, or the criminal network led by Epstein and Maxwell, unless such individual’s involvement in that conduct originated from being trafficked, sexually abused, or otherwise directly harmed by sexual abuse, sex trafficking, forced labor, or abuse or exploitation of a minor involving Jeffrey Epstein, Ghislaine Maxwell, or the criminal network led by Epstein and Maxwell.

“(2) CRIMINAL NETWORK.— The term ‘criminal network’ means any individual or entity that knowingly participated in, assisted, facilitated, funded, concealed, profited from, obstructed

investigation of, or otherwise enabled any sexual abuse, sex trafficking, forced labor, commercial sex act, abuse of a minor, financial exploitation, money laundering, bribery, extortion, racketeering activity, or other related criminal conduct involving Jeffrey Epstein or Ghislaine Maxwell.”.

(b) PROHIBITED WITHHOLDINGS FURTHER CLARIFIED.— Section 2(b) of the Epstein Files Transparency Act (Public Law 119–38; 139 Stat. 657) is amended by adding after paragraph (1) the following new paragraph:

“(2) The Attorney General of the United States may not invoke any common law privilege, including the deliberative process privilege, attorney-client privilege, attorney work-product privilege, or law enforcement privilege, to withhold, delay, or redact any record, document, communication, or investigative material described in subsection (a), except as expressly permitted under subsection (c).”.

(c) PERMITTED WITHHOLDINGS.— Section 2(c)(1) of the Epstein Files Transparency Act (Public Law 119–38; 139 Stat. 657) is amended—

(1) in subparagraph (C), by striking the semicolon at the end and inserting “; or”;

(2) in subparagraph (D), by striking “; or” and inserting a period; and

(3) by striking subparagraph (E).

(d) PERMITTED WITHHOLDINGS CONT.— Section 2(c)(2) of the Epstein Files Transparency Act (Public Law 119–38; 139 Stat. 657) is amended by striking “All redactions” before “must be accompanied by a written justification” and inserting “Each redaction”.